

CHAPTER 22.

An Act to amend the Protection of Animals
 • *(Scotland) Act, 1912.* [28th July 1921.]

BE it enacted by the King's most Excellent Majesty,
 by and with the advice and consent of the Lords
 Spiritual and Temporal, and Commons, in this present
 Parliament assembled, and by the authority of the same,
 as follows:—

1. The first section of the Protection of Animals Amendment
(Scotland) Act, 1912, subsection (3), paragraph (b), shall of s. 1,
 be amended by the addition thereto of the following subs. (3),
 words:— para. (b) of
Protection

“and a captive animal shall not be deemed to
 be coursed or hunted within the meaning of this of Animals
 subsection if it is coursed or hunted in an enclosed (Scotland)
 space from which it has no reasonable chance of Act, 1912.
 escape.” 2 & 3 Geo. 5.
 c. 14.

2. This Act may be cited as the Protection of Animals Short title.
(Scotland) Act, 1912, Amendment Act, 1921.

CHAPTER 23.

An Act to amend the Law relating to the Appoint-
 ment and Tenure of Office of Medical Officers
 of Health, Sanitary Inspectors, and Inspectors
 of Nuisances, and for other purposes.
 [28th July 1921.]

BE it enacted by the King's most Excellent Majesty,
 by and with the advice and consent of the Lords
 Spiritual and Temporal, and Commons, in this present
 Parliament assembled, and by the authority of the same,
 as follows:—

1. In cases to which this section applies, the medical Tenure of
 officer of health of a local authority who by the terms of office of
 his appointment is restricted from engaging in private medical
 practice as a medical practitioner shall not be appointed officer of
 for a limited period only and shall be removable by the health.

authority with the consent of the Minister of Health or by the Minister and not otherwise.

This section applies to—

- (a) the medical officer of health of a county borough where any portion of the salary of the medical officer was paid out of moneys voted by Parliament before it was constituted a county borough;
- (b) the medical officer of health of a county district any portion of whose salary is paid out of the county fund of the county in which the district is situate and charged to the Exchequer contribution account.

Tenure of office and appointment of sanitary inspectors.

2.—(1) In cases to which this subsection applies, the sanitary inspector of a local authority who is required by the terms of his appointment to devote the whole of his time to the duties of his office or to the duties of that office and of any other office or offices held by him under any local or public authority, shall not be appointed for a limited period only and shall be removable by the authority with the consent of the Minister of Health or by the Minister and not otherwise.

This subsection applies to—

- (a) the sanitary inspector of a county borough where any portion of the salary of the sanitary inspector was paid out of moneys voted by Parliament before it was constituted a county borough;
- (b) the sanitary inspector of a county district any portion of whose salary is paid out of the county fund of the county in which the district is situate and charged to the Exchequer contribution account:

Provided that, where more than one sanitary inspector is appointed by a local authority, the foregoing paragraphs (a) and (b) of this subsection shall apply only to the senior sanitary inspector as determined by the local authority.

(2) An urban sanitary authority shall have power to appoint two or more sanitary inspectors.

Definition of "sanitary inspector."

3.—(1) In this Act the expression "sanitary inspector" includes an inspector of nuisances appointed

under the Public Health Act, 1875, and an inspector of nuisances shall henceforth be designated a sanitary inspector. 38 & 39
Vict. c. 55.

• (2) In this Act the expression “local authority” means an urban or rural sanitary authority within the meaning of the Public Health Acts or a port sanitary authority.

4. Nothing in this Act shall prevent a local authority from making, with the sanction of the Minister of Health, a temporary arrangement for the performance of all or any of the duties of a medical officer of health or sanitary inspector, and any person appointed by virtue of any such arrangement to perform those duties or any of them, shall, subject to the terms of his appointment, have all the powers and liabilities of a duly appointed medical officer of health or sanitary inspector as the case may be. Temporary
appoint-
ments.

5. The provisions of this Act relating to the removal from office of medical officers of health and sanitary inspectors shall apply to such officers and inspectors whether appointed before or after the commencement of this Act. Application
to existing
officers.

6. Section twenty-four of the Local Government Act, 1888 (which provides for payments by county councils to local authorities in respect of the salaries of medical officers of health and sanitary inspectors), shall have effect as if the reference in subsection (2) thereof to the Public Health Act, 1875, included a reference to this Act. Application
of s. 24 (2)
of 51 & 52
Vict. c. 41.

7.—(1) The provisions of paragraphs (b) and (c) of subsection (2) of section one hundred and eight of the Public Health (London) Act, 1891 (which relate to the removal and appointment of medical officers of health of metropolitan borough councils), shall apply to the chief or senior sanitary inspectors of metropolitan borough councils and to the medical officers of health and the chief or senior sanitary inspector of the port sanitary authority of the Port of London as they apply to the medical officers of health of metropolitan borough councils, and those provisions shall have effect accordingly. Provisions
as to Lon-
don.
54 & 55
Vict. c. 76.

(2) Save as provided by this section, this Act shall not apply to the administrative county of London.

Extent of
Act.

8. This Act shall not extend to Scotland or Ireland.

Construction
of Act.

9. This Act shall, except so far as it relates to the administrative county of London, be read as one with the Public Health Acts.

Short title
and com-
mencement
of Act.

10. This Act may be cited as the Public Health (Officers) Act, 1921, and shall come into operation on the first day of April, nineteen hundred and twenty-two.

CHAPTER 24.

An Act to amend the Law relating to marriage with a deceased brother's widow.

[28th July 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Marriage
with a de-
ceased
brother's
widow not to
be void as a
civil contract
except in
certain cases.

1.—(1) Section one of the Deceased Wife's Sister's Marriage Act, 1907, shall be read and construed as if after the words "deceased wife's sister," where they occur in such section, there were inserted "or between a man and his deceased brother's widow."

(2) Section three of the said Act shall be read and construed as though—

7 Edw. 7.
c. 47.

(a) in subsection (1) thereof, after the words "wives' sisters," there were inserted the words "or husbands' brothers' wives"; and

(b) in subsection (2) thereof, at the end, there were inserted the words "or the divorced wife of his brother, or the wife of his brother who has divorced his brother, during the lifetime of such brother."

(3) Section four of the said Act shall be read and construed as if at the end thereof there were inserted the words "or his deceased brother's widow."

(4) Section five of the said Act shall be read and construed as though at the end thereof there were inserted